

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 27, 2026
8:30 AM/1:30 PM

14. ADAM STOCKELAND V. TANYA STOCKELAND

24FL0319

Respondent filed a Request for Order (RFO) seeking reimbursement of expenses for the parties' children's expenses. Petitioner was personally served with some, but not all the required documents on July 5, 2026. Respondent is seeking reimbursement for what she asserts is Petitioner's share of the shared expenses for the minor children.

Petitioner filed a Responsive Declaration on August 12, 2026. It was served on the same day. Petitioner does not raise the issue in the defect in service; therefore, the court deems it to be waived. Petitioner opposes the request, as the expenses were not agreed upon as required by the parties' judgment.

The court finds it will need to take testimony on this matter. Parties are ordered to appear for the hearing.

TENTATIVE RULING #14: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING TO SELECT MANDATORY SETTLEMENT CONFERENCE (MSC) AND TRIAL DATES.

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15. JENNIE VICTORIANO V. DANIEL VICTORIANO

PFL20200111

Contempt

Petitioner filed an Order to Show Cause and Affidavit for Contempt (OSC) on April 1, 2026, alleging six counts of contempt by Respondent. Respondent was personally served on May 16, 2026.

Parties appeared for the arraignment on June 11, 2026. The court appointed the office of the Public Defender to Respondent and continued the matter to August 27, 2026, at 1:30 PM in Department 5.

Parties are ordered to appear for arraignment.

Respondent's Request for Order

Respondent filed a Request for Order (RFO) on June 9, 2026, seeking a modification of permanent spousal support orders. Respondent did not concurrently file an Income and Expense Declaration. Petitioner was mail served some of the required documents on August 5, 2026. The court finds this does not comply with the requirements of Family Code section 215, which requires personal service for post-judgment requests for modification.

Further, the court finds the service to be untimely. Civil Procedure section 1005(b) which states: "Unless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing. The moving and supporting papers served shall be a copy of the papers filed or to be filed with the court. However, if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and the place of address are within the State of California..." This would have made July 31, 2026, the last day for mail service.

Petitioner filed a Responsive Declaration and Income and Expense Declaration on August 19, 2026. It was served on August 18, 2026. Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made August 14th the last day for filing a response to the RFO. Therefore, the declaration is late filed and has not been considered by the court.